

Quick-Start Guide

Clearwater County Court System. Everything you need to know, on two pages. If you want the detail, it is all in the Court Procedures Manual.

I JUST GOT ARRESTED. WHAT NOW?

1. **Say nothing.** You have the right to remain silent and it costs you nothing to use it. Say the words out loud: "I am invoking my right to remain silent and I want a lawyer." Then stop talking.
2. **You will see a judge quickly.** Within 24 hours a judge reads the officer's affidavit. If it does not describe a crime, you go free right there.
3. **Ask for a lawyer.** If you cannot afford one, fill out Form CR-09 and the Court appoints a Public Defender for free. Do this even if you think you are guilty.
4. **Plead NOT GUILTY at first.** You can always change it later. You cannot un-plead guilty.
5. **Bond.** The judge decides on Form CR-06 whether you are released and on what terms. Follow every condition exactly - breaking one gets you locked back up with no bond.
6. **Show up.** Missing a court date creates a warrant and a brand new criminal charge. If you cannot make it, file Form GN-06 *before* the date, not after.

I GOT A TICKET

Look at the citation. If it says CIVIL INFRACTION, you have 30 days and five choices on **Form TR-02**. If it says CRIMINAL TRAFFIC, you must appear in court - paying is not an option.

Your Choice	What Happens	Points?
Pay the fine	Case closes. Conviction on your record.	Yes
Elect traffic school	Pay plus a school fee, take a course.	No
Payment plan	Admit it, pay over time. Miss one and your licence is suspended.	Yes
Contest it (TR-04)	Hearing. If the officer does not show, it is usually dismissed.	Only if you lose
Ask for a lower fine	Admit it but explain your circumstances.	Yes
Prove you fixed it (TR-03)	For registration, licence, or equipment problems.	Usually dismissed
Do nothing	Fine grows, licence suspended, possible warrant.	Yes, plus more

SOMEONE OWES ME MONEY OR WRECKED MY STUFF

- **Under \$8,000?** File a Small Claims Statement of Claim, **Form CV-05**. No lawyer needed, plain language, and a judge will try to settle it at a pretrial conference.
- **Over \$8,000?** File a Civil Complaint, **Form CV-01**, with a Civil Cover Sheet, **Form AD-01**.
- **Bring your evidence.** Screenshots, chat logs, receipts, witnesses. The judge can only consider what you actually bring with you.

A COP DID SOMETHING WRONG

There is a specific order to this, and skipping a step will get your case dismissed.

1. **Form AD-05** - file an Internal Affairs complaint. Creates a record and forces an investigation.

2. **Form AD-03** - request the body camera footage and reports. Do this early, before anything is overwritten.
3. **Form CV-04** - serve a Notice of Claim on the department. **This is mandatory before you can sue.** They get 45 days to respond.
4. **Form CV-01** - after the 45 days, file your lawsuit and attach the stamped Notice of Claim.

I LOST. CAN I APPEAL?

Yes, but you have **30 days** and that deadline cannot be extended by anyone. File **Form AP-01** with the Appellate Court. Remember that an appeal is not a do-over: no new witnesses, no new evidence, no second trial. You are arguing that the judge got the *law* wrong. Only a very small number of cases go further, to the Supreme Court on **Form AP-02**.

I WANT TO BE A LAWYER

Fill out **Form AD-04** and pass the bar examination. Once admitted you receive a bar number, and from then on you file **Form CR-08** in every case to tell the Court you represent someone. You can work as a prosecutor, a public defender, or in private practice.

FIVE RULES THAT KEEP YOU OUT OF TROUBLE

1. Everything goes on a form and gets filed with the Clerk. If it is not filed, it did not happen.
2. Whatever you file, the other side gets a copy. Every time.
3. Never miss a deadline. Almost nothing in this system can be fixed after the fact.
4. Never lie to the Court, fake evidence, or coach a witness. It ends legal careers permanently.
5. Treat the Court, the other side, and the Clerk with courtesy. It costs nothing and it is noticed.

Still stuck?

Ask the Clerk of Court. Clerks cannot give you legal advice, but they can tell you which form you need, what the filing fee is, and when your hearing is. That answers most questions.